

FEDERAL MARITIME COMMISSION

RAHAL INTERNATIONAL INC., *Complainant*

v.

HAPAG-LLOYD AG, HAPAG-LLOYD (AMERICA), LLC, AND
HAPAG-LLOYD USA, LLC, *Respondents*

AND

HAPAG-LLOYD AG AND HAPAG-LLOYD (AMERICA), LLC,
Third-Party Complainants

v.

MAHER TERMINALS, LLC, GCT NEW YORK LP, AND GCT
BAYONNE LP, *Third-Party Respondents*.

DOCKET NO. 23-05

Served: December 21, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

AMENDED SCHEDULING ORDER

Complainant Rahal International, Inc. (“Rahal”), Respondents Hapag-Lloyd AG, (“HLA”), Hapag-Lloyd (America), LLC (“HLA”) (collectively, “Hapag” or “Third-Party Complainants”), Third-Party Respondent Maher Terminals, LLC (“Maher”), and Third-Party Respondents GCT New York LP and GCT Bayonne LP (collectively, “GCT”) filed a Revised Joint Motion to Amend Schedule (“Motion to Amend”), on December 20, 2023. In the Motion to Amend, the parties state “that good cause is shown to adjust the Initial Scheduling Order because of the additional time and discovery that is necessary due to the introduction of the three Third-Party Respondents in the case...that could not, and has not, been completed within the timeframe of the Initial Scheduling Order.” Motion to Amend at 2. The parties propose changing the dates for discovery and briefing schedules. To further support the motion, the parties submit that there is “the potential for multiple and duplicative depositions of witnesses, which, at this time, will likely include *at least* one witness from each party group (for a minimum of at least four witnesses).” *Id.* (emphasis in original).

The parties now seek to extend the close of discovery from December 29, 2023, to April 26, 2024, and the close of briefing from March 18, 2024, to July 1, 2024. Accordingly, good cause having been found, the parties' Motion to Amend is **GRANTED**.

The parties propose an amended discovery and briefing schedule which is reasonable.

The parties are hereby **ORDERED** to follow this schedule:

January 10, 2024	Third-Party Complainants' and Third-Party Respondents' Initial Discovery Requests Exchanged
February 9, 2024	Third-Party Complainants' and Third-Party Respondents' Responses to Initial Discovery Requests Exchanged
March 22, 2024	Depositions of Fact Witnesses and Experts for Whom a Written Report is Not Required Completed
March 29, 2024	Report(s) of Expert Witnesses Exchanged
April 12, 2024	Expert Rebuttal Reports Exchanged
April 26, 2024	Close of Discovery
May 20, 2024	Complainant's Brief, Third-Party Complainants' Brief as to Affirmative Claims, Proposed Findings of Fact, and Appendices
June 17, 2024	Respondents' Opposition Brief, Third-Party Respondents' Briefs, Responses to Proposed Findings of Fact, Proposed Findings of Fact and Appendices
July 1, 2024	Complainant's Reply Brief, Third-Party Complainants' Reply Brief as to Affirmative Claims, and Responses to Proposed Findings of Fact

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

The parties are again reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). **Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves."** *Simmons v. United*

States, 698 F.2d 888, 893 (7th Cir. 1983) (emphasis added). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

While the original parties received the following instructions in the Scheduling Order of August 21, 2023, the Third-Party Respondents were not parties at that time. Accordingly, the following is repeated for the benefit of the Third-Party Respondents, and to assist the other parties. Any filing submitted without page numbers, including on exhibits, may be rejected. The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact, e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;

- c. The appendix must begin with a table of contents identifying the page at which each individual document begins, and each exhibit should be clearly identified, for example, by a cover sheet or bookmark;
- d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7); and
- e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

Scheduling Order at 2-3.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.

Similarly, the parties are reminded of how to mark confidential material in their briefs, proposed findings of fact, responses to proposed findings of fact, and appendices:

Confidential Material

- 19. *Stipulation* – The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.
- 20. *Use in the proceeding* – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.
- 21. *Depositions* – Parties may not mark entire depositions as confidential. Parties should ask questions that may require confidential responses together, typically at the end of the deposition. Alternatively, parties may mark as confidential selected statements in a deposition prior to filing the deposition as an exhibit. Requests for confidential treatment of entire depositions should not be made and may be summarily rejected.

22. *Filing* – Parties should file two versions of confidential filings marked on the cover page as the “confidential version” and the “public version.” 46 C.F.R. § 502.5. Parties may label all pages as “confidential” or “public” in the header or footer. Improperly marked filings may be rejected.
23. *Marking confidential material* – In the confidential version, the confidential information must be conspicuously and clearly marked on each page, for example by outlining, highlighting, boxes, or braces. The public version must clearly indicate any omissions, for example with blackout or braces. *Pagination and depiction of text on each page must be identical to that of the confidential version.* For example, the confidential filing may read: “On January 1, 2010, Complainant entered into a {25} year lease with respondent for a monthly rent of {\$1000}.” The public version would read: “On January 1, 2010, Complainant entered into a { } year lease with Respondent for a monthly rent of { }.” Only confidential numbers or words should be marked as confidential in the confidential version and thus redacted in the public version, not entire sentences. Improperly marked filings may be rejected.
24. *Exhibits* – Confidential information in exhibits should be marked as described above. If marking within the text is not feasible, the motion seeking confidential treatment must indicate why the material could not be so marked. If justified, individual pages may be replaced in the public version with a page indicating that confidential material was excluded. Entire exhibits should not be excluded, only those pages containing confidential material.
25. *Personal information* – Personally identifiable information such as social security numbers, birth dates, and financial account numbers must be redacted pursuant to Commission Rule 13. 46 C.F.R. § 502.13.
26. *Confidential Request Table* – It is recommended that a confidential request table be submitted, organizing requests for confidential treatment of exhibits by bates number. The table may include: (1) the bates range for confidential document requests, (2) the document’s description, (3) whether confidential treatment is being requested for the entirety of the bates range or only for certain material marked in both the confidential and public versions, and (4) the legal basis for the confidentiality request. If a particular bates range in an appendix does not include any confidential information, it does not need to be listed in the confidential materials list. If a supplemental appendix is later submitted, it is recommended that a new comprehensive confidential bates list be submitted, which includes the previous list and any additional bates ranges for which confidential material has been requested (resulting in one confidential list for Complainants and one confidential list for Respondents, encompassing all confidentiality requests).

Example: [Party Name] Appendix - Confidential Bates Table

<i>Bates Range</i>	<i>Description</i>	<i>Classification Requested for</i>	<i>Basis for Confidentiality Request</i>
CX 12-13	Depo. Transcript of [Name]	Material indicated	Current pricing data
RX 8-9	Agreement dated [dd/mm/yy]	Entire page range	Commercially sensitive rates and terms

Initial Order at 5-6.



Linda S. Harris Crovella
Administrative Law Judge